

Court No. - 1

Case :- WRIT - C No. - 27276 of 2019

Petitioner :- Dharni Dhar Pandey

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Rahul Mishra

Counsel for Respondent :- C.S.C., Amit Krishna, Chandan Agarwal

Hon'ble Ramesh Sinha, J.

Hon'ble Ajit Kumar, J.

Heard Sri Rahul Mishra, learned counsel for the petitioner, Sri Chandan Agarwal, learned counsel for the Power Corporation, learned Standing Counsel appearing for the State respondents and perused the record.

By means of this writ petition under Article 226 of the Constitution of India, the petitioner has prayed for a writ of mandamus commanding the respondents, in particular, Executive Engineer, PVVNL, Ghaziabad-respondent no.4 to take a well informed decision on the representation of the petitioner dated 20.6.2019 and permit a 2 KW meter connection to the petitioner on payment of usual charges in view of Section 43 of The Electricity Act, 2003 read with Clause 4.9 of U.P. Electricity Supply Code, 2005.

According to the pleadings, as have been raised in the present writ petition, the petitioner applied for a new electricity connection on 19.6.2019. However, he submits, till date no action has been taken for grant of electricity connection to him.

Learned counsel for the petitioner has further drawn our attention to the relevant provisions as contained under Chapter IV of U.P. Supply Code, 2005.

We have gone through the relevant provisions as contained under Chapter IV, particularly clauses 4.1, 4.3 and 4.4 which cast obligation upon the licensee namely the respondents herein, to consider the application/representation of the petitioner for new electricity connection and if otherwise there is no legal impediment, to ensure that electricity connection is granted speedily within a month.

We find no justification, therefore, for inaction on part of the respondents to linger on the matter and not to take any decision either to grant electricity connection or to refuse the same for the reasons to be accorded.

In such view of the matter, we are disposing of the writ petition with a direction to the respondent no. 4 to consider the application/representation of the petitioner for grant of new electricity connection and pass a reasoned and speaking order, either way, positively within a period of four weeks from the date of production of certified copy of this order.

With the aforesaid observations and directions, the writ petition stands disposed of.

(Ajit Kumar, J.) (Ramesh Sinha, J.)

Order Date :- 19.8.2019/NS